

Moved by Den Hartog

Seconded by Bernt

IN THE SENATE
SENATE AMENDMENT TO H.B. NO. 897

AMENDMENT TO SECTION 1

On page 1 of the printed bill, in line 26, delete "April 1, 2026," and insert: "July 1, 2026, or for which a qualifying business entity received a provisional exemption on or after July 1, 2026,".

On page 3, in line 2, delete "April 1, 2026," and insert: "July 1, 2026, and has been granted a provisional exemption for such data center on or after July 1, 2026,"; in line 9, delete "April 1, 2026," and insert: "July 1, 2026, and has been granted a provisional exemption for such data center on or after July 1, 2026,"; and in line 36, following "property" insert: "if such business entities demonstrate that they will meet the requirements provided in this section".

On page 4, following line 7, insert:

"(3) Beginning July 1, 2026, each qualifying business entity shall retain purchase receipts for every purchase made that is exempt from taxation pursuant to this section. Such receipts shall be kept for a period of no less than ten (10) years from the date of the purchase.

(4) Each qualifying business entity shall file a report to the state tax commission no later than February 1 of each year that includes the following information:

(a) The amount of sales tax revenue from which such qualifying business entity was exempted from paying in the previous calendar year pursuant to the exemption provided in this section, as evidenced by its purchase receipts retained pursuant to subsection (3) of this section;

(b) The approximate number of jobs the qualifying business entity created in the state that are directly related to the data centers that are the subject of such entity's exemption;

(c) The total amount of capital investment the qualifying business entity has made in the state that is directly related to the data centers that are the subject of such entity's exemption;

(d) A summary of the electricity usage of the data centers that are the subject of the qualifying business entity's exemption and, to the extent known or reasonably ascertainable by the qualifying business entity, how such electricity usage has impacted the availability and price of electricity in the communities surrounding such data centers;
and

(e) A summary of the water usage of the data centers that are the subject of the qualifying business entity's exemption and, to the extent known or reasonably ascertainable by the qualifying business entity, how such water usage has impacted the availability and price of water in the communities surrounding such data centers."

1 in line 8, delete "(3)" and insert: "(5)"; in line 12, delete "February" and
2 insert: "March"; in line 29, following "and" insert: ", to the extent known
3 or reasonably ascertainable by the state tax commission,"; in line 33, fol-
4 lowing "and" insert: ", to the extent known or reasonably ascertainable by
5 the state tax commission,"; and in line 36, delete "(4)" and insert: "(6)".

6 AMENDMENT TO THE BILL

7 On page 4, delete lines 44 through 49; delete page 5; on page 6, delete
8 lines 1 through 10; and renumber subsequent sections accordingly.

9 CORRECTION TO TITLE

10 On page 1, in line 4, delete "AMENDING SECTION 63-4502, IDAHO CODE, TO
11 LIMIT ELIGIBILITY"; delete line 5; and in line 6, delete "CORRECTIONS;".